

Not Reported in Fed. Supp.
United States District Court, N.D. California

UNKNOWN PARTIES

v.

GOOGLE LLC

Case No. 23-cv-05523-VC

Decided April 29, 2024

Opinion of the court

Attorneys and Law Firms Lisa D. Haba, Pro Hac Vice, The Haba Law Firm, PA, Longwood, FL, Margaret Elizabeth Mabie, Pro Hac Vice, James R. Marsh, Marsh Law Firm PLLC, New York, NY, Robert Yancey Lewis, Marsh Law Firm PLLC, Los Angeles, CA, for Plaintiffs. Amit Quint Gressel, Wilson Sonsini Goodrich & Rosati, P.C., San Francisco, CA, Benjamin D. Margo, Brian M. Willen, Pro Hac Vice, Wilson Sonsini Goodrich and Rosati, PC, New York, NY, Christopher M. Trebilcock, Clark Hill PLC, Detroit, MI, for Defendants Google LLC, YouTube LLC. Michelle Marie McLean, Bolhouse Hofstee & McLean PC, Grandville, MI, for Defendants James Jackson, Lucas Jackson. James Jackson, Puyallup, CA, Pro Se. Lucas Jackson, Pro Se

ORDER GRANTING MOTION TO DISMISS Re: Dkt. No. 112 VINCE CHHABRIA, United States District Judge YouTube's motion to dismiss is granted. This order assumes the reader's familiarity with the facts, the applicable legal standard, and the arguments made by the parties

All the plaintiffs' claims against YouTube are controlled by Section 230, which shields websites from liability for content created and posted by third parties. See 47 U.S.C.A. § 230(c) (1); see also *Doe v. Internet Brands, Inc.*, 824 F.3d 846, 850 (9th Cir. 2016). The plaintiffs' arguments against the applicability of Section 230 are unpersuasive. First, it is clear from the complaint and the plaintiffs' theory of liability that they seek to treat YouTube as a publisher or speaker of third-party content. The plaintiffs allege that Onision "ran several YouTube channels" that "targeted minor audiences" and allowed Onision to "groom and lure underage girls." According to the plaintiffs, YouTube is liable because it provided a platform for Onision to reach young girls and because it shared advertising revenue with him. Such allegations clearly seek to treat YouTube as a "publisher" of Onision's content. Second, the YouTube Partnership Program does not create an agency or partnership relationship between YouTube and Onision. The YPP is simply a revenue-sharing agreement where YouTube pays content creators a percentage of advertising revenue generated by their videos. There are no facts supporting the allegation that Onision acted on behalf of YouTube in posting his videos or that YouTube exercised any control over what video content Onision posted. Likewise, there are no facts suggesting YouTube and Onision were co-owners of a business for profit. See Cal. Corp. Code § 16202(a). The fact that they shared revenue is not enough to show that a partnership was formed. See *id.* at (c)(2). There is an exception to Section 230 immunity for "civil child sex trafficking claims if the 'conduct underlying the claim' violates 18 U.S.C. § 1591." *Does 1-6 v. Reddit, Inc.*, 51 F.4th 1137, 1141-42 (9th Cir. 2022). But this exception only applies if the defendant-website itself engaged in some conduct indicating participation in a sex trafficking venture. *Id.* In other words, to get around Section 230 immunity, the plaintiffs must allege that a defendant-website's own conduct

demonstrates that it knowingly benefitted from knowingly participating in child sex trafficking. See *id.* at 1145. “Mere association with sex traffickers is insufficient absent some knowing “participation” in the form of assistance, support, or facilitation.” *Id.* Here, the plaintiffs do not attempt to argue that this exception applies, and even if they did, all the plaintiffs have alleged

is YouTube's “mere association with sex traffickers.” The plaintiffs do not allege facts in support of YouTube's knowing participation in, or knowledge of, Onision's alleged child sex trafficking. Apart from the plaintiffs being introduced to Onision through his YouTube videos, none of the subsequent alleged interactions between the plaintiffs and Onision took place on YouTube. And there are no allegations that YouTube was ever made aware of any illegal conduct between the plaintiffs and Onision. The plaintiffs rely heavily on the Seventh Circuit case, *G.G. v. Salesforce*, which held that Salesforce could be civilly liable for participating in a venture that violated Section 1591. 76 F.4th 544, 565. But the facts in *Salesforce* are readily distinguishable. There, *Salesforce* entered into a business relationship with the website *Backpage*—an online platform for adult advertisements that was also publicly described “as a hub of human trafficking, especially the trafficking of minors.” *Id.* at 549. *Salesforce* was alleged to have sold “software designed specifically for *Backpage* and provided affirmative, personalized support” that “helped *Backpage* operate its business, manage relationships with existing customers, market itself to new customers, and improve profitability.” *Id.* at 549-50. Based on the “continuous